

		<i>Perkins v. Superior Court</i> (1981) 117 Cal.App.3d 1, 6 (allegations that defendant was guilty of “oppression, fraud and malice” could not be stricken where the complaint contained sufficient facts to support such allegation.). Defendant argues that Plaintiff failed to identify a specific managing agent of the corporation that ratified the fraud. In <i>Dhital</i>, the court held that the manufacturer’s authorized dealership were its agent for purposes of the sale of its vehicles to the consumers, and that this relationship was sufficient to establish a duty to disclose – without requiring the identification of a specific individual. Liability was established through the manufacturer’s agents. As ruled above, Plaintiff has alleged sufficient facts to state a cause of action for fraudulent concealment, and thus grounds for an award of punitive damages. Accordingly, the motion to strike punitive damages is DENIED. <i>Civil Penalties</i> Ford argues Plaintiff’s request for civil penalties should be stricken because she failed to allege she complied with the new notice requirements for the Song-Beverly cases established by CCP § 871.24(a). But paragraph 23 of the FAC states that “Plaintiff made a request for repurchase of the Subject Vehicle compliant with the requirements of CCP 871.24. Defendant has failed to timely comply with its obligations under the Act.” Such allegation is sufficient to comply with Section 871.24. Accordingly, the motion to strike civil penalties is DENIED. Clerk to give notice.
8	Libertucci vs. Cooper 2023-01370576	Motion for Sanctions No tentative. Order to Show Cause re: Failure to Appear
9	Wei vs. Sarkis 2025-01509812	Demurrer to Complaint Defendants Anthony M. Sarkis and Shivangini Chudhary’s

		demurrer to the complaint of Yilu Amanda Wei is overruled in part and sustained in part as follows: SUSTAINED as to the 2nd cause of action for account stated SUSTAINED as to the 3rd cause of action for damages OVERRULED as to the 4th cause of action for promissory estoppel. SUSTAINED as to the 5th cause of action for failure to mitigate damages. SUSTAINED as to the 6th cause of action for fraud SUSTAINED as to the 7th cause of action for unjust enrichment. SUSTAINED as to the 8th cause of action for intentional infliction of emotional distress SUSTAINED as to the 9th cause of action for negligence SUSTAINED as to the 10th cause of action for receiving stolen property. SUSTAINED as to the 11th cause of action for breach of the covenant of quiet enjoyment. Wei shall have ten days leave to amend. Defendant Sarkis to give notice.
10	Casate vs. Allview Real Estate 2026-01542936	1. Demurrer to Complaint 2. Motion to Strike Complaint 3. Case Management Conference <i>Continued. See minute order dated 7/14/26 (ROA 47).</i>